Rec'd July 23.

Mr Pratt
Consul

1089.

U. S. Legation, Japan,
Tokei, June 3, 1874.

DEPARTMENT OF STATE RECEIVED JUL 23 1874

FOREIGN Relations '74

Mr Bingham
to the
Hon. Secretary of State.

Subject.

Sanjo's proclamation concerning causes of Formosan Expedition, which has landed in Formosa and has been attacked by aborigines. A Commissioner has been despatched by China to negotiate with the Japanese.

Mr Bingham Explains his action in the detachment of the P.M.S.S. "New York."

Enclosure.

Enclosure.

Proclamation of Sanjo, Prime Minister, May 19, 1874.

No 89

U.S. Legation, Japan,
Tokei, June 3, 1874.

Sir:

It seems to me important to communicate to you the fact that the Prime Minister, Sanjo, who in April made and withdrew a proclamation of hostilities against Formosa, on the 22nd May issued a new Notification, as it is termed, a copy of which I herewith enclose.

The Honorable
The Secretary of State.

It

It is clear to my mind that the landing of an armed Expedition in Formosa under this proclamation, for the purposes therein declared, imposes upon China the necessity of deciding whether it shall be considered an act of war. On this point I had some conversation with the Minister for Foreign Affairs on yesterday. He said to me that the Government had information of the landing of the Japanese troops on the South-East of Formosa, where they had been attacked by the Boutons, who were repulsed after some loss of life on both sides. He also said that he had received the further information that the Chinese Government had despatched a gunboat to Formosa carrying a High Commissioner with instructions to treat with Saigo, who is in command of the Expedition.

I could not gather from the conversation that the Minister had any assurance that China would acquiesce in the armed occupation of any portion of the island for any considerable time

time by the Japanese forces. He intimated, however, that the Government awaited communications directly from the Japanese Envoy who is reported to have arrived in Peking.

In my No. 78 of April 24th. I informed you of the fact that the Minister for Foreign Affairs, upon my protest against the employment of American citizens and vessels in hostile operations against China, had detached the steamer "New York" from service in this Expedition. I omitted to state the fact that the Agent of the Pacific Mail Steamship Company, Mr Center, called upon me, and signified his desire that the steamer should be so detached and his entire approval of the order of the Japanese Government detaching it from the service. After the order had been sent forward by the Minister for Foreign Affairs, Mr Center again called upon me, and expressed apprehensions that the soldiers of the Epedition and the officers in command, then at Nagasaki, would, in disregard

disregard of the order, force the ship to sail with the Expedition to Formosa. He requested me to notify our Consul at Nagasaki, Mr Maugum, and request his aid in enforcing the order of the Foreign Office." In compliance with this request, I delivered to Mr Center, to be forwarded at his Ex= pense, a telegram to Mr Maugum informing the latter gentleman that the steamer "New York" had been detached by order of the Jap= anese Government from the Formosan Expedition, and that he should, accordingly, detain her in port. I am not advised that he had occasion to intervene, but, as I before informed you, the steamer was in obedience to the orders of the Japanese Government discharged from that service."

In this connection I beg leave to inform you that some days since Mr Tung Wing, appointed by the Government of China Commissioner of Education for the instruction of Chinese youths in the United States, called upon me, and stated that he

he was instructed by the Governor of Shanghai to thank me for intervening to prevent the employment of the American vessel "New York" in the Formosan Expedition. I also learned from him that the Chinese Government had a considerable number of troops in Formosa and also a number of gunboats in the adjacent waters, and he seemed to be of opinion that unless the Japanese speedily left the island, or gave assurance to the Chinese Government of their intention to remain but temporarily, there would result a conflict of arms between the Japanese and Chinese forces.

I await with interest your instructions upon these important matters, involving, as they do, our treaty obligations both to Japan and China.

I am, Sir,

Your obedient servant,

Wm A. Bingham

No 89.

Enclosure.

Copy of Translation.

Notification No 65.

To Ino, Sho, Shi, Fu and Ken:

May 19th, 1874.

In the 11th Month of the 4th Year of Meiji (Nov. 1871) fifty Loochooans who were cast ashore in the savage part of Formosa were murdered by the natives. In the 3rd Month of the 6th Year of Meiji (March, 1873) four men of the Oda Ken were cast ashore there and treated in a brutal manner.

These affairs were the subject of representation to the Government of China by our Ambassador Plenipotentiary.

Now Formosa not being far from Japan, it is probable that there will be other cases from time to time of Japanese

being

being cast ashore there, and considering the progress which is gradually being made in navigation, it may be expected that our people will in future visit that country.

Under such circumstances the repetition of similar outrages is gravely to be apprehended, and His Majesty has therefore at this time appointed Saigo Tori Michi, General of the second rank, commander of an Expedition to that island. It will be his duty; first, to call to an account and deal with the persons guilty of outrages on our subjects; and secondly, to take such steps as will Ensure the safety of our people's navigation in the future.

The above is hereby notified

(signed)

(signed.) Sanjo Saneyoshi,
Dajo daijin.

Mail to-day to Japan. 17 July

Abstract Japan Quiet

No. 89. June 3. 1874

Mr Bingham informs Department that the Prime Minister Sanjo, on May 22d. issued a new Notification - and encloses a copy and says that the landing of an Expedition under this proclamation will cause China to decide whether it shall be considered an act of war. Has conversed with Minister for Foreign Affairs - who said that the Gov't had information of the landing of the Japanese troops on the South-East of Formosa - where they had been attacked by the Boutous, who were repulsed after some loss of life on both sides, and that he had information that the Chinese Government had dispatched a

gunboat to Formosa with a High Commissioner with instructions to treat with Saigo. Mr Bingham could not gather from the Conversation that the Minister had any assurance that China would acquiesce in the armed occupation of any portion of the Island for any time by the Japanese Government. The Government is awaiting information direct from the Japanese Envoy, reported to have arrived at Peking.

Mr. Bingham refers to his No. 78 - of 24 April - relating to his protest against American citizens and vessels engaging in hostile operations against China - States that the Agent of the Pacific Mail Steamship Company acquiesced in the order detaching

the Steamer "New York." After the order had been sent forward, the Agent stated that he feared that the Expedition at Nagasaki, would force the ship to sail, and requested instructions to Consul there to aid in enforcing the order. This was done by telegraph at the Agents' expense. Not advised whether Consul interfered but Steamer was by order of the Japanese Government discharged.

Mr. Lung Wing, Commissioner of Education (Chinese youths in U.S.) thanked him for intervening. in the name of Governor of Shanghae. Also told him that the Chinese had a number of troops in Formosa. also a number of gunboats in the adjacent waters. and that he (Lung Wing) was of opinion that unless

the Japanese left the Island or gave assurance to the Chinese of their intention to remain but temporarily. there would be a conflict of arms between the Japanese and Chinese forces.

Mr. Bingham awaits with interest instructions on these important matters, involving our treaty obligations both to Japan and China.

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Plenipotentiary.

Now Formosa not being far from Japan, it is probable that there will be other cases from time to time of Japanese being cast ashore there, and considering the progress which is gradually being made in navigation, it may be expected that our people will in future visit that country.

Under such circumstances, the repetition of similar outrages is gravely to be apprehended, and His Majesty has therefore at this time appointed Saigo Jori Michi, General of the Second Rank, Commander of an Expedition to that Island. It will be his duty: first, to call to an account and deal with the persons

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(Signed)

Sanjo Saneyoshi
Daijo daijin.